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**IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

v.

TYLER JAMES ROBINSON,

Defendant.

**NEWS MEDIA'S CONSOLIDATED
RESPONSE TO DEFENDANT'S
OPPOSITIONS TO EMC ORDERS
FOR THE SEPTEMBER 1, 2026
HEARING**

Case No. 251403576

Hon. Tony F. Graf, Jr.

The News Media respectfully submits this Response to Defendant Tyler James Robinson's Oppositions to EMC Orders for the September 1, 2026 hearing (Oppositions).¹ (Dkts. 716, 717; *see also* Dkts. 710, 711 (EMC Orders).)

¹ Defendant's Oppositions are nearly identical, except the Opposition to The Salt Lake Tribune's EMC request argues that still photography should not be permitted by both KUTV and The Salt Lake Tribune. (Dkt. 717 at 1–2.) KUTV intends to provide livestreaming only, so still photography will be provided by only The Salt Lake Tribune.

Defendant's Oppositions repeat generalized policy arguments against EMC that this Court has already rejected. Those arguments are not sufficient to overcome the presumption favoring EMC and should be rejected yet again.²

First, Defendant argues "there is a reasonable likelihood that [EMC] will prejudice the right of the parties to a fair proceeding." (Dkt. 717 at 2 (quoting Utah Code Jud. Admin. R. 4-101.01(2)(B)(i)).) He contends prejudice is reasonably likely because hearsay testimony will be presented at the September 1, 2026 hearing and because EMC "distracts and places added pressure on hearing participants." (Dkt. 717 at 2–3.) This Court has already rejected these arguments because they "merely reflect generalized views or preferences" and could be made with respect to any preliminary hearing. Utah Code Jud. Admin. R. 4-401.01(2)(D). Moreover, the evidentiary portion of the preliminary hearing was open to the public and livestreamed, so the hearsay testimony is already available to the public. Denying EMC now would only fuel speculation and erode trust in the criminal justice system. As Defendant himself asserts, the "taking of evidence during the preliminary examination, oral arguments on that evidence, and the determinations made by the Court based upon that evidence is a critical stage of these capital proceedings." (Dkt. 717 at 3.) That is true and exactly why meaningful public access to this stage of the proceeding is so important.

Second, Defendant points to online speculation about the outcome of the trial. (Dkt. 717 at 2–3.) This is another generalized argument that could be made with regard to numerous court

² Defendant again argues that his due process and fair trial rights are violated by the briefing guidelines implemented by the Court. (Dkt. 717 at 1–2.) Those arguments are without merit, for the reasons explained by this Court in its prior rulings and in the News Media's Response to Defendant's Petition for Permission for Interlocutory Appeal. (Dkt. 626 at 17–19.) Moreover, Defendant has made no effort to demonstrate what information he would like to present to the Court but is prohibited from doing so by the briefing guidelines.

proceedings and that is not specific to EMC. Defendant has not provided any reason to believe that denying EMC would solve or mitigate his concerns. Regardless of whether there is EMC, members of the public will discuss this case. That fact does not, by itself, prejudice Defendant's fair trial rights—indeed, the public's constitutional right of access acknowledges the benefits of public discussion. *See, e.g., Press-Enterprise Co. v. Sup. Ct. of Cal. for Riverside Cnty.*, 478 U.S. 1, 7 (1986) (“The right to an open public trial is a shared right of the accused and the public, the common concern being the assurance of fairness.”).

Lastly, Defendant objects to EMC because “the request does not allow any opportunity for witnesses to address privacy or security concerns.” (Dkt. 717 at 4.) Defendant raises concerns about his counsel and individuals who provided 1102 statements for the preliminary hearing. But he does not identify specific concerns related to EMC, nor does he explain how those concerns would be mitigated by terminating EMC (especially considering the evidentiary portion of the hearing was open to the public). And contrary to Defendant's suggestion, the Court can (and has) addressed privacy concerns through narrowly tailored means and without terminating EMC. Accordingly, this argument does not support any “particularized findings” that would support prohibiting EMC. Utah Code Jud. Admin. R. 4-401.01(2)(C).

For these reasons, the Court should deny the Oppositions.

RESPECTFULLY SUBMITTED this 27th day of August 2026.

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